

Three freed over drug weight discrepancy

Shoddy case presented by prosecution leads to acquittal

KUALA LUMPUR: A shoddy case presented by the prosecution, including a discrepancy in the weight of the drugs, led to the acquittal of three trafficking accused charged five years ago.

The three, C. Anbuchelvan, 33; S. Sangker, 29, and M. Alagendran, 25, were freed without having to make their defence after High Court judge Justice Lim Yee Lan ruled that the prosecution had failed to prove a prima facie case against them.

Justice Lim said there were doubts raised on various factors in the case, such as whether the drugs analysed in the prosecution's case were the same as those confiscated from the crime scene as its weight was inconsistent.

The police had recorded the gross weight of the three blocks of cannabis at 2,804g but the Chemistry Department report had listed the weight as 2,894g, weighing an extra 90.87g.

"This raises serious questions on whether it is the same drug item which was seized by the police," she said, adding that the seized drugs were also not properly marked.

The three had claimed trial to trafficking in 2.813kg of cannabis at Jalan 6/48A, Bandar Baru Sentul here at 9pm on March 2, 2004. They were arrested in a police raid.

Justice Lim also raised the question of why a K. Parthiban, who

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JUSTICE LIM YEE LAN

was at the scene of the alleged offence and was seen talking to Alagendran, was not brought before the court, when Alagendran was charged.

"His absence has created gaps. Without his testimony, the prosecution merely proved that there were three men talking without being able to prove that they had conspired to traffic the drugs together," she said.

She added that the police and prosecution had made no effort to locate Parthiban, after the police went to his mother's house and was informed that he had gone to Johor Baru.

The prosecution produced nine witnesses for their case.

After the verdict was pronounced, the three were uncuffed and quietly left the courtroom with their family members.